

claim. (Opposition, pp. 14-15.) On reply, Defendant argues that “Plaintiff’s Fourth Cause of Action rises and falls with the other Causes of Action.” (Reply, p. 5.)

Because the Court has overruled the demurrer to the first and second causes of action, this UCL claim is sufficiently pled.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendant’s demurrer to the first, second and fourth causes of action and **SUSTAINS** the demurrer to the third cause of action. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

12. 9:00 AM CASE NUMBER: C26-02214
CASE NAME: BOBBY JOHN VS. ANAND MUNI
MOTION TO BE RELIEVED AS COUNSEL RE: MEGAN T. BURNS
FILED BY: JOHN, MARIA
TENTATIVE RULING:

The Court requires supplemental information filed under seal to be reviewed in camera.

13. 9:00 AM CASE NUMBER: C26-02214
CASE NAME: BOBBY JOHN VS. ANAND MUNI
MOTION TO BE RELIEVED AS COUNSEL RE: MEGAN T. BURNS
FILED BY: JOHN, TONY
TENTATIVE RULING:

The Court requires supplemental information filed under seal to be reviewed in camera.

14. 9:00 AM CASE NUMBER: C26-02214
CASE NAME: BOBBY JOHN VS. ANAND MUNI
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: JOHN, BOBBY
TENTATIVE RULING:

The Court requires supplemental information filed under seal to be reviewed in camera.

15. 9:00 AM CASE NUMBER: MSC21-02258
CASE NAME: THOMAS VS. ECKERT
***HEARING ON MOTION IN RE: BIFURCATE TRIAL**
FILED BY: ECKERT, DAVID
TENTATIVE RULING:

The motion to bifurcate under Code of Civil Procedure § 598, filed by defendant David Eckert, is **denied**. The Court does not find that bifurcation would significantly advance efficiency or fairness, as discussed below.

Background

This is a dispute between plaintiff Adrienne Thomas, the owner of a condominium, and several defendants associated with the management of the condominium complex. Among other claims, plaintiff alleges that defendants were negligent in maintaining and repairing HOA property as required by the CC&Rs, causing her financial loss through personal injury and property damage.

The operative Second Amended Complaint ("SAC") names three defendants that have appeared in the case: (1) Baywoods Homeowners Association, (2) Homeowners Management Company, LLC, and (3) David Eckert. Paragraph seven of the SAC alleges, "[a]t all relevant times Plaintiff is certain of the defendants, including the Doe defendants, were acting as the partners, agents, servants, employees, alter egos, successors or predecessors in interest, or contractors of others of the defendants, and were acting within the course and scope of such relationship, with the knowledge, express or implied, of each such other named defendant."

The SAC sets forth five causes of action (breach of contract, negligence, negligence per se, gross negligence, and intentional infliction of emotional distress), each of which names "Defendant's - David Eckert, et al and DOES 1 through 500."

Eckert now moves the Court for an order to bifurcate this matter so that the "threshold" issue of his individual liability may be tried separately from, and prior to, any HOA liability or damages. (Memorandum of Points and Authorities in Support of Motion, 2:6-8.) Plaintiff opposes the motion, arguing there are no issues of alter ego to be tried because such theory was not pleaded, she does not intend to offer such proof at trial, no efficiency would be gained by bifurcating, and because bifurcation would substitute the Court in the role of the jury.

The Court notes that certain of this analysis may be moot, given the notice received by the Court on August 31, 2026 that Defendants Baywoods Homeowners Association and Homeowners Management Co. have reached a settlement with Plaintiff Thomas. Given Plaintiff's allegations as further explained below, the Court will nevertheless proceed with its analysis.

Standard

Code of Civil Procedure § 598 permits a court to order "that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case" if "the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby." The objective of Code of Civil Procedure § 598, allowing trial of issue of liability before other issues, is avoidance of the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff. (*Trickey v. Superior Court* (1967) 252 Cal.App.2d 650, 654.) Code of Civil Procedure § 1048, subdivision (b) similarly provides that the trial court may order a separate trial of any separate issue or number of issues "in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy."

Generally, granting a motion for separate trials is discretionary. (*Regents of University of California v. Sheily* (2004) 122 Cal.App.4th 824, 833; *Royal Surplus Lines Ins. Co. v. Ranger Ins. Co.*

(2002) 100 Cal.App.4th 193, 205; *Finley v. Superior Court* (2000) 80 Cal.App.4th 1152, 1163.)

Discussion

Eckert argues bifurcation would avoid jury prejudice and serve judicial economy. The basis for his position is that, if he prevails in the initial phase, he will not be part of what is sure to be “a lengthy, complex, and highly technical jury trial regarding corporate negligence and environmental damages.” (Memorandum of Points and Authorities, 4:13-16.)

In opposition to the motion, plaintiff argues that, while Eckert, as the director and officer of the HOA, was often the actor through which the HOA caused plaintiff’s alleged injury, her allegations against Eckert are not solely based on alter-ego liability. Specifically, plaintiff alleges, on information and belief, that Eckert “intentionally, and willfully, avoided the necessary repairs in an attempt to make Plaintiff uncomfortable in her own property and forcing her to sale [sic] the property.”

While the Court agrees with the motion’s contention that proving alter ego would require a showing of factors such as “unity of interest, commingling of funds, and failure to observe corporate formalities” (Reply, 3:16-17), none of these have been pleaded in the SAC and there is no indication that plaintiff intends to show these factors.

All five of the causes of action here mention David Eckert by name, describing acts for which plaintiff asserts Eckert bears personal responsibility. The SAC alleges a cause of action for breach and several tort causes of action. These are not equitable in nature and the SAC seeks no equitable remedy. Eckert never challenged the Second Amended Complaint by way of demurrer, motion to strike, motion for judgment on the pleadings, or summary judgment / adjudication. Accordingly, there are multiple causes of action alleged directly against Eckert as an individual defendant, independent of whether or not he would be liable on an alter-ego theory. Eckert has not shown, based on the evidence, that plaintiff intends to even pursue an alter ego theory, which plaintiff expressly denies.

It is defendant’s burden to show bifurcation would further convenience, fairness, and judicial economy. The evidence of such showing is primarily by way of legal conclusions in counsel’s declaration. Eckert fails to address the argument that he is a direct defendant under the SAC, not simply liable under an alter-ego theory. He also fails to address the statutory requirement for a trial by jury in this type of case under Code of Civil Procedure, § 592.

While relying on Code of Civil Procedure, § 1048 (b), defendant ignores the constraints of that same section. Code of Civil Procedure, § 1048 (b) allows the Court, “in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy” to order a separate trial of “any separate issue or of any number of causes of action or issues, *preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.*”

Plaintiff highlights Code of Civil Procedure, § 592 as “statute of this state” which preserves the right of trial by jury in this action, which pleads one cause of action for breach of contract and four causes of action based in tort. Section 592 provides a plaintiff the right to a jury when the action is one for “injuries.” In such a case, “an issue of fact must be tried by a jury, unless a jury trial is waived, or a reference is ordered, as provided in this code.” While also true that the statute allows for the preliminary disposal of issues of law, the only issue identified here—alter ego liability—is not truly at issue by plaintiff’s own concession. The reply fails to address section 592. Accordingly, the Court concludes that bifurcation is not permitted under the relevant statutes and any separate trial of alter ego will not “be conducive to expedition and economy,” as required.

Accordingly, the motion must be denied.¹

16. 9:00 AM CASE NUMBER: MSC21-02258
CASE NAME: THOMAS VS. ECKERT
HEARING IN RE: JOINDER IN DEFENDANT DAVID ECKERT'S MOTION TO BIFURCATE TRIAL FILED 8/19/26 BY DEFENDANT BAYWOODS HOMEOWNERS ASSOCIATION AND HOMEOWNERS MANAGEMENT CO.
FILED BY: BAYWOODS HOMEOWNERS ASSOC.
TENTATIVE RULING:

Off calendar pursuant to moving party's request.

17. 9:00 AM CASE NUMBER: N25-0867
CASE NAME: PETITION OF: MORTGAGE LENDER SERVICES, INC
***HEARING ON MOTION IN RE: DISTRIBUTION OF SURPLUS FUNDS**
FILED BY:
TENTATIVE RULING:

At this time, through a combination of filings, it is clear that the three claimants: Susan Mechtel, Robert I. Reed, and Rebecca L. Lewis are the only three individuals entitled to the surplus funds. Through the combination of filings, it is also clear that each of these individuals is conceded by the others to be entitled to the surplus funds, and in the same proportion. The Court therefore approves the claim and authorizes distribution to each of these three individuals of one third of the surplus funds in this matter.

18. 9:00 AM CASE NUMBER: N26-0639
CASE NAME: MILLER STARR REGALIA VS. MOD SUPER FAST PIZZA (CALIFORNIA), LLC
HEARING ON PETITION IN RE: PETITION TO CONFIRM CONTRACTUAL ARBITRATION AWARD
FILED BY: MILLER STARR REGALIA
TENTATIVE RULING:

Before the Court is Petitioner Miller Starr Regalia's Petition to Confirm Contractual Arbitration Award against MOD Super Fast Pizza (California), LLC. No opposition has been filed. After a review of the

¹ As a result of this determination, the Court does not need to address the issues of the 5-year rule and Plaintiff's proposal for case management. As an initial matter, the length of the trial is irrelevant to the deadline for commencing the trial. For the purposes of Code Civil Procedure section 583.310, an action is "brought to trial" if, in a jury case, the jury has been impaneled. (*Hartman v. Santamarina* (1982) 30 Cal.3d 762, 765–767, 765 n.3.) A jury is "impaneled and sworn" when a panel of prospective jurors assembles in a courtroom for voir dire and is sworn to tell the truth. (*Stueve v. Nemer* (2017) 7 Cal.App.5th 746, 750–755.) On the other hand, the Court is surprised that by the obvious impracticability of Plaintiff's proposal, as staff and the Court herself have myriad other obligations that continue throughout a jury trial and make a 9am jury start time impossible.